



DEPARTMENT OF AGRICULTURE

State Board of Stock Inspection Commissioners

ADMINISTRATION AND ENFORCEMENT OF THE ALTERNATIVE LIVESTOCK ACT § § 35-41.5-101 – 117 C.R.S.

8 CCR 1205-2

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Part 1. Definition and construction of terms.

As used in these Rules, unless the context otherwise requires:

As used in these Rules, the singular includes the plural, the masculine gender includes the feminine and neuter, and vice versa. All terms used in these Rules shall have the meaning set forth for such terms in the Act.

- 1.1. "Accredited veterinarian" means an individual who is currently licensed and in good standing with a veterinary licensing board or agency in any state of the United States or the District of Columbia to practice veterinary medicine and is accredited by the United States Department of Agriculture, Animal and Plant Health Inspection Service, Veterinary Services.
- 1.2. "Act" means the Alternative Livestock Act, Title 35, Article 41.5, C.R.S.
- 1.3. "Alternative livestock" shall have the meaning set forth at § 35-41.5-102(1), C.R.S.
- 1.4. "Alternative livestock auction" means any place, establishment, or facility at which alternative livestock are received, held, or assembled for either public or private sale.
- 1.5. "Alternative livestock facility" means any real property licensed by the Board pursuant to §§ 35-41.5-104, 106 and 107, C.R.S.
- 1.6. "Animal and Plant Health Inspection Services (APHIS)" means the agency in the United States Department of Agriculture known as the Animal and Plant Health Inspection Services.
- 1.7. "Applicant" means a person that applies for an alternative livestock license or renewal of an alternative livestock license under the Act.
- 1.8. "Board" means the State Board of Stock Inspection Commissioners.
- 1.9. "Buyer" means the person purchasing alternative livestock. The buyer may, or may not be, the same as the purchaser.
- 1.10. "Cervid" means deer, moose or elk.
- 1.11. "Change of ownership" means when title to a live alternative livestock animal changes between persons.
- 1.12. "Chronic Wasting Disease (CWD)" means a transmissible spongiform encephalopathy of fallow deer and elk.

- 1.13. "CPW" means Colorado Parks and Wildlife.
- 1.14. "CWD Surveillance Status" means the period of time in months during which an alternative livestock facility has submitted brain specimens from all alternative livestock mortalities 12 months of age and older, regardless of cause, and when all such tests have proven negative for CWD, and when all external alternative livestock additions to the herd originated from a herd with equal or higher CWD Surveillance Status.
- 1.15. "Consignor" means the person that sends or delivers alternative livestock to the auction to be sold.
- 1.16. "Herd plan" means a plan approved by the Commissioner of the Colorado Department of Agriculture and the Director of CPW to replace a quarantine previously issued by the State Veterinarian to an alternative livestock facility that has tested positive for the presence of CWD. A herd plan sets forth how the herd and the facility must be managed to minimize the spread of CWD infection.
- 1.17. "NUES" means United States Department of Agriculture National Uniform Eartagging System.
- 1.18. "Person" means an individual or any legal entity that is registered to do business in Colorado.
- 1.19. "Purchase invoice" means the bill of sale issued by a licensed auction market which contains the information required in Part 12 of this Rule.
- 1.20. "Purchaser" means the person that has obtained title to alternative livestock by making payment for same with cash or an instrument which was honored when presented.
- 1.21. "Raised" as used in § 35-41.5-104 of the Act means any possession of alternative livestock for any purpose.
- 1.22. "Second barrier" means a fence or restraint in addition to the 8-foot perimeter fence designed in such a way as to provide additional protection against ingress and egress of alternative livestock and wild cervids and nose to nose contact, as approved by the Board.
- 1.23. "Seller" means the person that transfers legal title to alternative livestock.
- 1.24. "Separate location" as used in the Act means any facility located within a separate perimeter fence not connected to another perimeter.
- 1.25. "State Veterinarian" means the veterinarian designated by the Commissioner of the Colorado Department of Agriculture as the Director of the Division of Animal Health, Colorado Department of Agriculture.
- 1.26. "Transmissible Spongiform Encephalopathy (TSE)" means a disease of animals which is thought to be caused by an abnormal prion protein which accumulates in the brain and lymphoid tissue causing sponge-like lesions in the brain.
- 1.27. "Wild cervid" means species of the cervidae family indigenous to Colorado excluding captive animals of the same species held as alternative livestock for exhibition or research.

Part 2. The Licensing System

- 2.1. Each applicant for a license or renewal of a license shall submit a signed, complete, accurate, and legible application which shall include, at a minimum: the form provided by the Board; the application fee set by the Board; unless provided on the application form, the name and address of the facility, the name under which the facility will operate (the doing business as name), the name or the person who is the primary contact, the address and telephone number of the location where the records are to be kept; the headcount by sex of all live animals at the facility at the time the application/application renewal is made; and any other information required on the form.
- 2.2. Each applicant that is a corporation or limited liability company must submit a certificate of good standing from the Colorado Secretary of State.
- 2.3. Each applicant must submit to the Board the name under which the facility will operate. If the licensee operates under more than one name, each such name must be provided to the Board.
- 2.4. The license fee for new alternative livestock licenses shall be \$500.00 per year for any portion of a year.
- 2.5. The license fee for alternative livestock renewal licenses shall be \$300.00 per year for any portion of the year.
 - (a) The license renewal late fee shall be \$30.00 per year.
- 2.6. No license may be renewed unless (1) the application is accompanied by an inspection certificate completed by a brand inspector indicating that the facility was inspected in connection with the application, and (2) all outstanding license and late fees have been paid in full.
- 2.7. Alternative livestock facility licenses are not transferable.
- 2.8. Licensees that do not intend to seek renewal of their facility license must so notify the Board in writing.

Part 3. Records

- 3.1. Licensed alternative livestock facilities must maintain accurate and legible office records of inventory of alternative livestock; animal purity documents as designated by the Wildlife Commission; and herd or individual animal health documents as designated by the Commissioner of Agriculture. With respect to inventory records, if a facility's records differ from those maintained by the Board, the facility must, upon written request from the Board, provide a copy of the facility's inventory to the Board for the purpose of assisting the Board in determining the nature and cause of the discrepancy.
- 3.2. Inventory records must be kept for each individual animal and must include all of the following information:
 - (a) Ownership;
 - (b) Visible dangle ear tag number/color;
 - (c) Tattoo number;
 - (d) United States Department of Agriculture National Uniform Eartagging System, (NUES) tag number or official Canadian alphanumeric test tag number if applicable;

- (e) Age;
 - (f) Sex;
 - (g) Date of purchase and/or date of birth; and
 - (h) Date of death and/or date of change of ownership.
- 3.3. Any alternative livestock born on a licensed facility must be shown on the facility's inventory record no later than April 30 of the year following the year of birth.
- 3.4. Any alternative livestock purchased must be shown on the inventory record promptly after acquisition.
- 3.5. Office records of alternative livestock facilities licensed by the same person and located within 25 miles of each other by the nearest passable road may be combined and kept at one location.

Part 4. Notification of changes.

- 4.1. Any death of an alternative livestock animal must be reported to the Board in writing and must be received by the Board no later than the end of the month in which the death occurred unless requested earlier by the Board. Such written notification may be by email and must include: any identification number, any tattoo number, age, gender, cause of death (hunt, on the farm kill, or other cause), and the date or approximate date of death. Notwithstanding the foregoing, no report of death shall be required for any alternative livestock animal that, at the time of its death, is 12 months old or younger and has not been added to the facility's inventory.
- 4.2. A carcass release tag must accompany each hunt killed alternative livestock animal when the animal is removed from the licensed alternative livestock facility. The tag must be completed showing all requested information and must be signed by the owner or agent of the licensee.
- 4.3. Any change in the information provided in any application for a license or the renewal of an existing license must be submitted in writing to the Board within 15 days of such change.

Part 5. Alternative livestock identification.

- 5.1. Tattoos.
- (a) All alternative livestock must be permanently identified with a tattoo number as follows:
 - (1) CO (indicating Colorado) followed by a number as assigned by the Board (indicating the license number of the alternative livestock farm where tattooed) ("CO***"); and
 - (2) Any alphanumeric combination of letters or numbers consisting of not less than 4 digits (indicating the individual animal number) (hereinafter referred to as "ID Number").
 - (b) Each elk shall be tattooed:
 - (1) on the left hindquarter in the hairless area beside the tail;

CO*** ID Number
 - (2) in either ear if both the CO*** and the ID Number are in the same ear; or

- (3) in both ears. If both ears are used, the CO*** shall be tattooed in the animal's right ear and the ID Number shall be tattooed in the animal's left ear.
- (c) Each fallow deer shall be tattooed in the right ear.

CO***ID Number
- (d) Each alphanumeric character must be at least 3/8 inch high.
- (e) No tattoo number may be used on more than one animal of the same species. No animal may have more than one Board assigned tattoo.
- (f) All calves and fawns must be tattooed by April 30 following the year of birth unless a written exemption has been granted by the Board or its designee.
- (g) All other animals must be tattooed within 72 hours of acquisition. Except for calves and fawns not yet tattooed under Part 5.1 (f) of this Rule, no untattooed animal shall be commingled with tattooed animals.
- (h) Another method of permanent identification may be used if approved by the Board before use.

5.2. Visible tags or neckbands.

- (a) After December 31 of the year born, all alternative livestock must be marked with an approved United States Department of Agriculture (USDA) NUES Tag, or official Canadian alphanumeric test tag, a visible dangle ear number and color tag, or neckband, provided that any ear tag used must be at least 1 inch wide by 1 inch long, and each neckband shall be at least 1 inch wide.
- (b) Any lost NUES Tag, dangle ear tag or neckband must be replaced at the earliest opportunity.

Part 6. Facilities.

- 6.1. Alternative livestock facilities must be fenced sufficiently to prohibit ingress or egress of wild cervids and alternative livestock. At a minimum, fences must extend at least eight (8) feet above ground level with at least six (6) feet of mesh (maximum mesh size shall be 12-1/2' × 7'). The remaining two (2) feet may be smooth, barbed or woven wire with strands spaced not more than ten (10) inches apart. Construction shall begin no more than two (2) inches above the ground with the mesh portion of the fence beginning no more than 4 inches above the ground. All gates entering animal holding facilities that contain animals must be locked, or must consist of consecutive (double), or self-closing gates. Posts must be four (4) inch minimum diameter wooden or equivalent and spaced no more than 50 feet apart (60 foot spacing is allowed if there are at least two (2) steel posts between the wood posts). There must be a post or stay (wood or steel) every 20 feet. Posts must be at least eight (8) feet above ground level. Corners and gate openings must be constructed of braced wood or equivalent material. Such fences must be maintained at all times such that their ability to prevent ingress or egress, as determined by the Board or its designee, is not impaired.
- 6.2. All alternative livestock facilities constructed after July 30, 2003 shall be subject to the following requirements:

- (a) No new alternative livestock facility license shall be granted absent compliance with the procedures set forth in this Part 6.2 of the Rule. The procedures are intended to ensure that facilities are constructed in such a manner as to mitigate adverse impacts on wild cervid migration patterns and will not result in the preventable capture of wild cervids.
- (b) Applicants for licenses shall submit to the Board a facility plan designed to comply with Part 6.2 (a) above. The Board shall give 10 days notice to the applicant and CPW of an onsite meeting to consider the proposed facility.
- (c) Applicants must meet with representatives of the Board and CPW at the site of the proposed facility to discuss the facility plan and review the approximate location of the facility exterior perimeter. Any license issued by the Board shall be conditioned upon compliance with CPW recommendations to mitigate adverse impacts on wild cervid migration patterns. Notwithstanding the foregoing, the fact that longer but reasonably available and suitable migration paths will result from construction of a proposed alternative livestock facility shall not, by itself, constitute a basis for denial of the license application.
- (d) Any license granted by the Board must be conditioned upon compliance with CPW recommendations intended to minimize any capture of wild cervids at the time of closing the gates to the proposed facility. Applicants must pay the costs of removing wild cervids entrapped in a proposed alternative livestock facility, provided that such costs bear a reasonable relationship to the benefit to be received by the state. Any wild cervids remaining within the alternative livestock facility after closure of the gates must be removed consistent with a plan submitted by the applicant and approved by the Board and CPW. Such plan may include among other things; the permitted methods licensee shall use to encourage any remaining wild cervids to vacate the facility; the number of public hunters which may be licensed by CPW to expeditiously harvest any wild cervids remaining in the facility; other conditions relative to controlling access and impacts by public hunters on the facility and the time frame for completion of the removal process. Where complete removal is not possible the state must be fully compensated pursuant to C.R.S. 33-6-110.

- (e) Except as otherwise provided in this Part 6.2(e) of the Rule, facilities constructed after July 30, 2003 must be constructed with a double fence or second barrier if such second barrier will be effective in preventing the ingress and egress of alternative livestock and wild cervids. Applicants for an alternative livestock facility license shall bear the cost of construction of such double fence or second barrier, and the proposed double fence or second barrier must be approved by the Board. In reviewing an application for construction of a double fence or second barrier, the Board will take into account any recommendations offered by the CPW. Applicants may petition the Board for a variance from the double fence or second barrier requirement when the proposed facility is located in a game management unit where CWD is not known to exist in wild or captive cervid populations. The Board may also consider a variance request in any game management unit in which the prevalence rate for CWD in the wild cervid population does not exceed 1%. In reviewing a variance request the Board shall consider all relevant factors and must determine that the risk of CWD exposure to alternative livestock and wild cervids is negligible should such variance be granted. Such factors shall include but are not limited to topography of the proposed facility, the quality of the first perimeter fence, risk of ingress and egress by alternative livestock animals and wild cervids, and potential for CWD to spread to the area of the proposed facility. Upon granting the variance and prior to licensing the Board shall seek a determination from CPW as to whether that agency deems the risk of CWD sufficient in CPW's opinion to require a second fence or barrier, notwithstanding that the criteria for grant of the waiver has been met. Should CPW wish that a second fence or barrier be constructed nonetheless, then such construction shall be undertaken at CPW's expense, and the Board shall require as a condition of the license an agreement by the applicant to grant CPW an easement for the purpose of constructing and maintaining the second fence or barrier.
 - (f) All facilities constructed after July 30, 2003 must comply with applicable state and federal water regulations concerning run off water from animal concentration areas.
- 6.3. Internal handling facilities shall be capable of humanely restraining an individual animal for applying or reading any animal identification, taking blood or tissue samples, or other required testing. Any such restraint shall be properly constructed to protect inspection personnel while handling the animals.
- 6.4. Licensees must provide an isolation or quarantine holding facility that is adequate to contain the animals and provide proper feed, water, and other care necessary for the physical wellbeing of the animal for the period of time necessary to separate the animal and adequate to prevent nose to nose contact with other cervids.
- 6.5. The Board will consider the ingress or egress of wild cervids or alternative livestock other than through gates to be presumptive evidence that a licensee's perimeter fence is inadequate. In such event, the Board may issue an order to show cause why the license for a facility should not be revoked and may conduct a hearing for the purpose of making that determination. The Board may reschedule or dismiss such hearing if such licensee promptly submits a plan to the Board and CPW for remedial action that the Board deems practical and worthy of consideration. The Board will give CPW 10 days notice of (1) the date and time on which representatives of the Board will inspect the facility and evaluate the licensee's remedial plan, and (2) the rescheduled date on which the Board will conduct any hearing held under this Part 6.5 of this Rule. The Board will consult with CPW prior to the scheduled date of such show cause hearing. If the Board does not order revocation of such license, the Board may order such licensee to construct a second barrier at the licensee's expense or take other action deemed appropriate by the Board.
- 6.6. Expansions or additions to any existing licensed facility perimeter fence must be approved by the Board prior to commencement of construction. Applicable sections of this Part 6 of the Rule shall apply to any expansions or additions.

- 6.7 Expansions or additions of existing licensed facilities must be inspected by a brand inspector prior to release of alternative livestock into the addition or expansion.

Part 7. Inspections.

- 7.1. All alternative livestock facilities must be inspected by a brand inspector within 90 days before a license or the renewal of an existing license is issued. It is the responsibility of the applicant for a new license or the renewal of an existing license to contact the Board to arrange for such inspection. The Board shall have ample time to respond to the request for inspection.
- 7.2. All alternative livestock must be inspected/counted for inventory purposes within 90 days before a license or the renewal of an existing license is issued. It is the responsibility of the applicant for a new license or the renewal of an existing license to contact the Board to arrange for such inspection. The Board shall have ample time to respond to the request for inspection. Any discrepancy between the number and identification of animals determined during such inspection and the number and identification of animals reflected in the records maintained by a licensee as required in Part 3 of this Rule must be resolved by the licensee to the Board's satisfaction within one month after notification to the licensee unless a written exemption from this requirement is provided by the Board or its designee.
- 7.3. All alternative livestock must be inspected by a brand inspector when any change of ownership occurs to determine and certify ownership. The following requirements shall be met for any change of ownership inspection:
- (a) It is the responsibility of the seller to arrange for such inspection. The Board shall have ample time to respond to the request for inspection.
 - (b) The seller must have available at the time of inspection records to certify ownership, completed animal purity documents as designated by the Wildlife Commission, and completed herd or individual animal health documents as designated by the Commissioner of Agriculture.
 - (c) The seller must have the alternative livestock to be inspected properly contained in facilities adequate to contain each individual animal for proper inspection.
 - (d) The animals shall be contained at the appointed inspection time and be accessible for inspection.
 - (e) Except as otherwise provided in Part 7.5 of this Rule, alternative livestock must be inspected before being loaded or moved outside any perimeter fence.
 - (f) The seller must report to the Board in writing any alternative livestock animal that is not transferred following inspection.
- 7.4. Any alternative livestock animal purchased from an out-of-state source shall be tattooed and inspected within 72 hours of arrival at a licensed alternative livestock facility before it is released into and combined with any other alternative livestock. All requirements of Part 7.3 of this Rule shall apply to the inspection of such animals.
- 7.5. All alternative livestock moved to any location outside of the perimeter fence must first be inspected by a brand inspector unless (1) moved to an alternative livestock facility licensed by the same person and located within 25 miles by the nearest passable road, or (2) moved to any Colorado licensed slaughter plant. The following requirements must be met for any movement inspection:

- (a) It is the responsibility of the owner to arrange for such inspection. The Board shall have ample time to respond to the request for inspection.
- (b) The owner must have available at the time of inspection records to certify ownership, completed animal purity documents as designated by the Wildlife Commission, and completed herd or individual animal health documents as designated by the Commissioner of Agriculture.
- (c) Completed herd or individual animal health documents as designated by the Commissioner of Agriculture must accompany the alternative livestock during any interstate movement.
- (d) A Colorado inspection certificate must accompany any intrastate movement of alternative livestock unless moved to an alternative livestock facility licensed by the same person and located within 25 miles by the nearest passable road. A Colorado inspection certificate must accompany any interstate movement of alternative livestock originating in Colorado. Proof of ownership must accompany all interstate movement of alternative livestock to a Colorado destination.
- (e) The owner must have the alternative livestock to be inspected properly contained in facilities adequate to contain each individual animal for proper inspection.
- (f) The animals must be contained at the appointed inspection time and be accessible for inspection.
- (g) Except as otherwise provided in this Rule, animals shall be inspected before being moved to a location outside any perimeter fence.
- (h) The owner must report to the Board in writing any animal that is not shipped following inspection.

7.6. Proof of ownership shall consist of:

- (a) A Colorado inspection certificate;
- (b) A purchase invoice from a licensed public livestock market showing individual animal identification;
- (c) A duly executed bill of sale. For any bill of sale issued after July 1, 1994, only out of state bills of sale will be recognized;
- (d) Court orders;
- (e) Certification that the animal was born from animals owned by the seller; or
- (f) Any other document the Board may deem acceptable.

7.7. There shall be no charge for inventory inspections conducted pursuant to Part 7.2 of this Rule.

7.8. Except for inventory inspections conducted pursuant to Part 7.2 of this Rule, all alternative livestock inspections shall include a service charge of \$40.00 per stop per owner payable at the time of appointment for inspection regardless of whether an inspection occurs. This service charge shall be in addition to the per head inspection fee set forth in Part 7.9 of this Rule.

- 7.9. Except for inventory inspections conducted pursuant to Part 7.2 of this Rule, the per head inspection charge shall be \$7.00 payable at the time of inspection and before an inspection certificate is issued.
- 7.10. After July 1, 1994, any alternative livestock moved or changing ownership shall be tattooed pursuant to part 5 of this Rule.

Part 8. Estrays.

- 8.1. All wild cervids that become entrapped on a licensed alternative livestock facility must be separated from the alternative livestock no later than 72 hours following discovery of the entrapment. In addition, upon discovery of any entrapment of wild cervids on a licensed alternative livestock facility, the licensee must notify CPW and the Board or its designee.
- 8.2. All alternative livestock that escape the perimeter of the alternative livestock facility must be recaptured within 72 hours from discovery of the escape. Any escape of an alternative livestock animal must be reported to CPW and the Board or its designee within 72 hours of discovery.

Part 9. Alternative livestock auction facilities.

- 9.1. A facility at which an alternative livestock auction takes place must be capable of containing alternative livestock, must have an at least 8-foot high fence, and must meet one of the following requirements:
 - (a) Located within the fenced perimeter of a licensed facility;
 - (b) In a totally enclosed building containing approved confinement facilities;
 - (c) At a site which is prior-approved by the Board; or
 - (d) By video auction if all inspections required by Part 7 of this Rule are met.
- 9.2. Alternative livestock received, held or assembled for auction must be kept separate from, and may not be commingled with, an accredited herd. Separation shall be demonstrated by separate feed and water and physical separation by at least twenty feet, or by a solid partition sufficient to prevent nose-to-nose contact.
- 9.3. No alternative livestock auction may take place at a facility which is under quarantine.
- 9.4. The facility at which an alternative livestock auction takes place shall have a proper working facility to inspect the animals, read tattoos and conduct any necessary testing.
- 9.5. The auction facility shall sell alternative livestock as individual lots, either as individual animals or animals of the same seller.

Part 10. Requirements for consignment at an alternative livestock auction.

- 10.1. Every animal consigned for sale at an alternative livestock auction must be from a herd of known tuberculosis status, specifically, accredited, qualified or monitored. The health certificate accompanying the consigned animal shall document the tuberculosis status of the herd of origin. The health certificate shall also document the presence of tattoos, the location of tattoos, the dangle ear tag number and the United States Department of Agriculture NUES alphanumeric tag number.

- 10.2. Inspection by a brand inspector is required for each consigned animal from a Colorado licensed facility prior to transportation to the alternative livestock auction, or prior to sale, even if the animal is not transported. The inspection certificate shall contain the name and address of the alternative livestock auction facility. The seller shall deliver the inspection certificate to the alternative livestock auction.
- 10.3. Every animal consigned for sale at an alternative livestock auction must be accompanied by proof of purity, specifically, proof of testing, North American Elk Breeders Association papers or CPW herd purity certificate demonstrating that the animal is free from red deer hybridization.
- 10.4. Every animal coming to the auction from outside Colorado must meet all requirements for importation into Colorado. Further, every animal coming from outside the state of Colorado must be accompanied by certification of legal title. If the animal comes from an inspection state, it must be accompanied by an inspection certificate.
- 10.5. All records for animal health and purity purposes required by the Uniform Methods and Rules and/or this Rule to accompany a consigned animal shall be maintained by the auction.

Part 11. Tattoo requirements of animals sold through an alternative livestock auction.

- 11.1. If an animal carries a legible tattoo of a minimum of four alphanumeric characters, the purchaser, if a Colorado licensed facility, must tattoo the animal with CO and the license number of the alternative livestock farm.
- 11.2. If the animal carries a tattoo of less than four alphanumeric characters, or if the tattoo carried by the animal is a duplicate in an individual herd, the animal shall be re-tattooed by the purchaser pursuant to Part 5 of this Rule.
- 11.3. The purchase invoice shall notify the Colorado licensed facility that purchases an animal without a tattoo that the purchaser is required to tattoo the animal and arrange inspection within 72 hours as set forth in Part 5.1.(g) of this Rule.

Part 12. Requirements for purchase invoices.

- 12.1. The purchase invoice utilized by an alternative livestock auction must contain the following information:
 - (a) Lot number, dangle ear tag number, United States Department of Agriculture NUES number, tattoo number and location, sex, age and price of each animal;
 - (b) Name of the seller and consignor and the seller's address and phone number;
 - (c) Name of the purchaser and purchaser's agent and the purchaser's address and phone number;
 - (d) The inspection certificate number and the name of the Colorado or other state's inspector of the certificate accompanying the animal to auction; and
 - (e) The name of the Colorado licensed facility and the designation "intransit" for all animals which will be offloaded at a Colorado licensed facility for intransit care.
- 12.2. The purchase invoice must contain the following statements, requiring the purchaser to initial in the box:

- (a) If any of the animals purchased above is not tattooed and you are a Colorado licensed alternative livestock facility, you are required by the Rules pertaining to the administration and enforcement of the Colorado Alternative Livestock Act to tattoo the animal and request inspection within 72 hours of purchase.
- (b) Any intransit animal held at a Colorado licensed facility over 30 days must be reinspected by a Colorado brand inspector prior to moving or transporting the animal to its final destination and all inspection fees shall be paid.

12.3. A copy of each purchase invoice from the auction shall be delivered to the Board.

Part 13. RESERVED

Part 14. RESERVED

Part 15. RESERVED

Part 16. Cervid (elk/fallow deer) Slaughter Rules.

- 16.1. Any butcher or slaughter plant licensed by the Colorado or United States Department of Agriculture and desiring to slaughter cervids must notify the Board on the license application of the intent to butcher and/or slaughter cervids.
- 16.2. All cervids must be tested for CWD when slaughtered at any licensed Colorado slaughter plant regardless of origin. The licensed plant must submit the brain for testing to an authorized CWD testing lab as designated by the State Veterinarian within 24 hours after slaughter. The cost of testing shall be paid by the licensed plant. The cost may be charged back to the animal owner.
 - (a) All carcasses of cervids slaughtered must be held at the slaughter facility until CWD test results are confirmed and animal origin verified. If the carcass must be processed prior to CWD results being confirmed, all meat products must be held as set forth in Part 16.2(b) of this Rule.
 - (b) All carcasses and meat products must be identified by specific identification which correlates to the identification of the sample at the CWD lab.
 - (c) Any cervid that tests positive for CWD must be reported to APHIS and the State Veterinarian for disposition.
- 16.3. All samples sent to any CWD testing lab (as designated by the State Veterinarian) must have all animal identification noted with the sample (tattoo numbers, USDA NUES Tag, and dangle ear tag color and number) and be accompanied by an official Colorado alternative livestock inspection certificate (this certificate may be faxed to the laboratory if not sent with the actual sample). All animal identifiers shall remain intact on the cervid head until after inspection and released by a brand inspector. (Each alternative livestock owner shall make their own arrangements with the slaughter facility and the testing lab to preserve samples suitable to DNA verification)
- 16.4. All cervids slaughtered at a licensed plant must be inspected for identification and title by a brand inspector and the fee shall be \$7.00 per head. Animals may be released at the discretion of the area inspector for inspection at the plant providing the animals do not cross the state line en route. The inspector in the area of the cervid's origin must call and inform the inspector for the slaughter facility that the animal has been released. A copy of the official inventory from the licensed facility must accompany the animal to the slaughter facility and specifically note the animals in the shipment.

- 16.5. Containment of live cervids shipped to any Colorado licensed slaughter facility.
- (a) The perimeter of a containment facility shall be constructed consistent with Part 6.1 of this Rule.
 - (b) All perimeters, holding pens, and alleyway construction shall be the sole responsibility of the licensed slaughter plant and must be properly constructed to contain the animals consigned to slaughter. Written acknowledgment by a brand inspector that the plant has satisfied this requirement must be on file with the Board prior to licensing the plant to slaughter cervids.
 - (c) The State Veterinarian or his designee shall have sole discretion in the disposition of any cervid and other cervid source mates shipped to any slaughter plant which test positive for CWD.
 - (d) A containment facility at a licensed slaughter facility that has held positive CWD animals or source herd mates shall not be used to hold live animals until the pens and alleyways are cleaned and disinfected as ordered by the State Veterinarian or his designee. The pens or alleyways shall not be utilized until released in writing by the State Veterinarian.
- 16.6. Live cervids shipped into Colorado for slaughter from any destination must be killed within 72 hours of arrival unless consigned to a terminal bio-secure facility.
- (a) All cervids shipped into Colorado for slaughter which are not slaughtered within 72 hours of arrival must meet all current import requirements including records to certify ownership, animal purity documents as designated by the Wildlife Commission, and herd or individual animal health documents, and be properly tattooed and inspected upon arrival.
 - (b) All cervids shipped into Colorado for slaughter must be held in separate pens by herd of origin.
 - (c) All out-of-state cervids must be identified by a dangle ear tag or colored neck band or colored spray paint marking and the visual identification statement shall be shown on the Interstate Certificate of Veterinary inspection.
 - (d) Any escape shall be reported to the Board and CPW immediately.
- 16.7. Violators are subject to sanction under 35-41.5-112 through 35-41.5-115, C.R.S. and as otherwise set forth in this Rule.

Part 17. Terminal Bio-Secure Enclosures.

- 17.1. Terminal bio-secure enclosure is a terminal cervid holding facility for slaughter only arrivals. Once an animal enters this enclosure it must go directly to slaughter. All terminal bio-secure facilities must be approved in writing prior to animal entry by the State Veterinarian or his designee. A complete description, plat drawing, and location (including address if applicable) must be in writing and held on file at the Colorado State Board of Stock Inspection in conjunction with the letter of approval from the State Veterinarian.
- 17.2. Construction.
- (a) Minimum perimeter fence requirements must comply with CPW Rules Chapter 11. Double fenced with a minimum separation of 15 feet at the closest point and the interior fence meeting minimum State requirements as above.

- (b) The terminal bio-secure enclosure must be self-contained with working facilities as per Part 6.3 of this Rule totally within the double fence.
 - (c) The terminal bio-secure facility must have loading facilities totally within the double fence perimeter.
 - (d) The enclosure must provide separate holding areas to keep animals separate by herd source and of sufficient size for industry accepted standard animal care with feeding and watering capabilities.
 - (e) The enclosure shall not exceed 40 acres total size.
 - (f) The location of the terminal bio-secure enclosure must be such that no live water enters or exits the perimeter.
 - (g) If the terminal bio-secure enclosure is not located within a properly licensed alternative livestock facility, it must obtain a separate license from the Board as an alternative livestock facility.
- 17.3. Animals entering an approved terminal bio-secure facility must be slaughtered no later than 30 days following entry.
- 17.4. All cervids entering Colorado consigned to an approved terminal bio-secure enclosure must be accompanied by a current certificate of veterinary inspection showing the Colorado entry permit number and proof of ownership verifying the shipper is the legal owner.
- 17.5. All cervids entering Colorado consigned to a terminal bio-secure enclosure must be identified and comply with Part 16.6(c) of this Rule.
- 17.6. Inventory Control
- (a) All cervids entering a terminal bio-secure facility must be inspected into the perimeter by a brand inspector within 48 hours of arrival.
 - (b) The licensee accepting shipment into the terminal bio-secure facility shall be responsible for affixing a colored dangle ear tag clearly displaying the date of entry and a numeric or alphabetical character for individual identification within a source herd shipment. (For example: A-6/7/01, B-6/7/01, C-6/7/01, etc. or 1-6/7/01, 2-6/7/01, 3-6/7/01, etc.) Each source herd shall be identified by a different color and the same colors shall not be used within the enclosure at the same time.
 - (c) Cervids leaving a terminal bio-secure facility must be shipped directly to a USDA approved licensed slaughter facility and must be inspected at destination by a brand inspector as per Part 16.4 of this Rule.
 - (d) The in-inspection inventories of a terminal bio-secure enclosure shall be kept separate and distinct from the alternative livestock facility license inventory if located within a licensed facility.
- 17.7. Fees for in-inspection and exit inspection: the fees authorized by the Board for the official inspection into an authorized terminal bio-secure enclosure shall be \$7.00 per head with a \$40.00 minimum. The fees authorized for exit out of an authorized terminal bio-secure facility shall be as per Part 16.4 of this Rule for animals shipped direct to slaughter.

- 17.8. A terminal bio-secure facility that has held positive CWD animals or source mates shall not be used to contain live animals until the pens and alleyways are cleaned and disinfected as ordered by the State Veterinarian or his designee. Release to utilize the terminal bio-secure enclosure must be in writing signed by the State Veterinarian or his designee.
- 17.9. Violators are subject to sanction under 35-41.5-112 through 35-41.5-115, C.R.S. and as otherwise set forth in this Rule.

Part 18. RESERVED

Part 19. Concerning the Eradication of Chronic Wasting Disease among Alternative Livestock Herds.

- 19.1. Revocation of Alternative Livestock Licenses
- (a) A positive diagnosis of CWD as determined by an approved laboratory of either a wild or private animal found within the perimeter fence of an alternative livestock facility may subject the herd to quarantine by the State Veterinarian. The alternative livestock license of any quarantined herd shall immediately be subject to any and all terms and conditions of any such quarantine, including any terms regarding import and export of alternative livestock. Renewal of such license shall be contingent upon written approval from the State Veterinarian during the term of any such quarantine. Any material violation of the terms of such quarantine may be grounds for disciplinary action against the license, which discipline may include revocation of the license of such facility.

Parts 20. – 25. RESERVED

Part 26. Statements of Basis, Specific Statutory Authority & Purpose

- 26.1. July 1, 1994 - Effective July 3, 1994, and August 11, 1994 - Effective September 30, 1994 (Parts 1–8)

The purpose of these rules is to establish standards and procedures for the enforcement of §§ 35-41.5-101 to 117, C.R.S. the Alternative Livestock Act. The authority for these rules is § 35-41.5-105, of the Alternative Livestock Act which requires the State Board of Stock Inspection Commissioners to administer and enforce the Alternative Livestock Act. Section 35-41.5-105(2) requires the State Board of Stock Inspection Commissioners to adopt any necessary and reasonable rule for the administration and enforcement of the Alternative Livestock Act.

- 26.2. December 15, 1994 — Effective December 15, 1994, and February 8, 1995 — Effective March 3, 1995 (Part 5)

This rule is adopted under the Alternative Livestock Act pursuant to § 35-41.5-105, C.R.S., and pertains to the administration and enforcement of the Alternative Livestock Act.

During the 1994 legislative session, Article 41.5 of Title 35 was enacted as the Alternative Livestock Act. The State Board of Stock Inspection Commissioners has adopted rules to administer and enforce the provisions of the Alternative Livestock Act. The identification of individual animals has been required by State Board of Stock Inspection Commissioners pursuant to the Alternative Livestock Act.

Part 5.1 of said rules established tattooing requirements which have in some instances proved to be unworkable. Some elk have been difficult to tattoo on the butt. Some butt tattoos have proven unreadable after even a short period of time. In addition, the area to be tattooed on a calf has been too small for the amount of information required. Because of weather or other factors, some alternative livestock owners have been unable to meet the deadline that all calves be tattooed before January 31 following the year of birth.

The State Board of Stock Inspection Commissioners ("Board") has modified the tattooing requirements with this rule to allow tattooing elk either on the butt or in the ear. In addition, the Board modified the rules to allow an exemption from the requirement that calves and fawns be tattooed before January 31 following the year of birth. With this rule, all tattoos will have the same minimum size.

The purpose of these rules is to establish tattooing standards and procedures for alternative livestock. The authority for these rules is § 35-41.5-105, of the Alternative Livestock Act which requires the State Board of Stock Inspection Commissioners to administer and enforce the Alternative Livestock Act. Section 35-41.5-105(2) requires the State Board of Stock Inspection Commissioners to adopt any necessary and reasonable rule for the administration and enforcement of the Alternative Livestock Act. These rules allow the State Board of Stock Inspection Commissioners to comply with the Alternative Livestock Act.

No policy issues were encountered in making this rule.

26.3. March 19, 1995 — Effective April 30, 1995

26.4. May 8, 1998 — Effective May 8, 1998 July 8, 1998 — Effective August 30, 1998

These emergency rules pertaining to the administration and enforcement of the Alternative Livestock Act are adopted pursuant to § 35-41.5-105(2), C.R.S. (1997).

These rules are adopted on an emergency basis, as defined in the Administrative Procedures Act, § 24-4-103(6), C.R.S. (1997). Immediate adoption of these rules is imperatively necessary for the preservation of public health, safety or welfare and compliance with the requirements of § 24-4-103 would be contrary to the public interest. A bull elk was discovered in Nebraska that tested positive for Chronic Wasting Disease ("CWD"). The diseased elk was traced to Colorado licensed alternative livestock facilities. CWD is a transmissible spongiform encephalopathy. Immediate measures are required in order to detect and track any exposure of individual animals and other herds to CWD. Delay in instituting testing requirements for CWD, which would result from compliance with the publication and hearing requirements of §24-4-403, may result in diseased animals being moved thereby causing additional potential exposure to CWD.

Under present technology, no live animal test exists for detection of CWD. The testing required in these emergency rules reflects the state of the art for detection of CWD.

By vote on April 17, 1998, the Colorado Agricultural Commission required the following requirements concerning the control on infectious diseases, as set forth in § 35-41.5-105(2)(b), C.R.S. (1997).

These emergency rules shall be effective May 8, 1998.

26.5. July 8, 1998 — Effective August 30, 1998 (Part 7)

These rules are adopted pursuant to § 35-41-101(3), C.R.S. (1997) and § 35-53-130, HB 98-1101.

The purposes of these rules are to establish the annual transportation permit fee and to define the requirements of an annual transportation permit.

26.6. July 8, 1998 — Effective August 30, 1998 (Parts 9 – 15)

These amendments to the rules pertaining to the administration and enforcement of the Alternative Livestock Act are adopted pursuant to § 35-41.5-105(2), C.R.S. (1997).

The purposes of these amendments are to establish requirements for the public sale of alternative livestock, health monitoring requirements for alternative livestock and grounds for disciplinary actions.

26.7. February 10, 1999 — Effective March 30, 1999 (Parts 2 & 3)

This amended rule is adopted pursuant to the powers and duties of the Colorado State Agricultural Commission, § 35-1-106(1)(o), C.R.S. (1998).

The purposes of this amended rule are to: allow importation of alternative livestock into Colorado only from herds with known tuberculosis status; to update incorporation of federal standards; and to make the statutory change in the per head assessment.

26.8. August 6, 2001 — Effective August 6, 2001 (Part 16& 17) October 11, 2001 — Effective November 30, 2001

The statutory basis for the rules titled Cervid Slaughter Rules is the Alternative Livestock Act, § 35-41.5-101 through 117, C.R.S. (2001). The purpose of these rules is to protect the public health and animal health by detecting chronic wasting disease (CWD) in captive wildlife and alternative livestock presented in Colorado for slaughter and enact procedures to prevent the spread of CWD among animals.

26.9. October 11, 2001 — Effective November 30, 2001 (Part 18)

To minimize the risk of importing alternative livestock into Colorado which are infected, or exposed to the transmissible spongiform encephalopathy disease of cervidae known as chronic wasting disease (CWD). This rule requires that imported alternative livestock and their herd of origin have a minimum 36 months of CWD surveillance of all mortalities regardless of cause at the adoption of this rule.

26.10. April 22, 2002 — Effective April 22, 2002 (Part 19)

The statutory basis for these rules is the Alternative Livestock Act, §§ 35-41.5-101 through 117, C.R.S., and the Prevention and Eradication of Disease Act, §§35-50-101, 102, 136(3.2), C.R.S. and § 35-1-106(1)(o) C.R.S.

The purpose of this rule is to prevent the spread or recurrence of Chronic Wasting Disease through enhanced licensing requirements of alternative livestock facilities.

26.11. June 10, 2002 — Effective July 30, 2002

The purpose of these revisions to Parts 1 – 3 is to include portions of the rule that were inadvertently deleted through the publication process of the Colorado Code of Regulations. No substantive changes will be made to the rules and regulations previously adopted by the State Board of Stock Inspection. The statutory basis for these rules is the Alternative Livestock Act, §§ 35-41.5-101 through 117, C.R.S.; the Prevention and Eradication of Disease Act, §§ 35-50-101, 102, 110, 136(3.2) and § 35-1-106(1)(o), C.R.S.; and the authority of the State Board of Stock Inspection § 35-41-101 C.R.S.

26.12 May 14, 2003 — Effective July 30, 2003

The statutory basis for these rules is the Alternative Livestock Act, §§ 35-41.5-101 through 117, C.R.S. and the authority of the Brand Board, 35-41-101, C.R.S.

Non-substantive revisions were made throughout the rule to enact certain “housekeeping” changes, such as the correction of grammatical and typographical errors, as well as organization. Part 26 was added to include Statements of Basis and Purpose previously adopted. Substantive changes were made to Parts 2, 3, 6, 14, 18 & 19. Parts 2, 3 and 14 were deleted and in separate rule-making are moved to rules of the Colorado Department of Agriculture, Division of Animal Industry. Part 18 was deleted due to the expiration of emergency rules that were not enacted to become permanent. Portions of Part 19 were moved to Part 1, and changes were made to enact provisions of the “Memorandum of Agreement Between the Colorado Department of Agriculture and the Colorado Department of Natural Resources, Division of Wildlife for Development of a Coordinated State Program to Address Chronic Wasting Disease.” The purpose of revisions to Part 6 of this rule are to amend the fencing and facility design requirements for new Alternative Livestock facilities constructed after the date of enactment of these amendments to prevent the spread of Chronic Wasting Disease among alternative livestock in Colorado by better isolating wild cervids from alternative livestock.

26.13 December 10, 2003 - Effective March 1, 2004

The statutory basis for these rules is the Alternative Livestock Act 35-41.5-101-117 C.R.S. and the authority of the Brand Board 35-41-101 C.R.S. Additions or changes to Parts 1, 6, 7, and 19 reflect language to clarify the intent of the rule, and to implement the applicable provisions of the Memorandum of Agreement (MOA) signed in June 2002, between the Division of Wildlife and the Department of Agriculture, for the purpose of preventing the spread of Chronic Wasting Disease.

Additions to Parts 1 and 7 clarify and improve enforcement of the act. In Part 6 several changes are intended to clarify specific authority and to implement the provisions of the MOA (6/2002) Parts 6.6 and 6.7 specifically address expansions or additions to existing facilities and insure compliance with the intent of the Board and the Alternative Livestock Act.

Part 19 revisions correct a conflict between these rules and Part 3.4 of the rules ‘Concerning the Prevention of Disease in Alternative Livestock’ 8 CCR 1201-17 adopted April 29, 2003.

26.14 October 12, 2011 – Effective November 30, 2011

The statutory authority for these rules is the Alternative Livestock Act § 35-41.5-105(2)(c) and (g), C.R.S., and the general authority of the State Board of Stock Inspection Commissioners found at § 35-41.5-105(3), C.R.S.

The basis of these rules is to comport record-keeping requirements with industry practice and to modify the fee structure to reflect the actual cost of the program.

Changes to Part 2.5 reflect a reduction in fees in line with the actual cost of administering the program.

Changes to Part 3.3 comport with common practices within the elk industry with regard to tattooing, which cannot reasonably be accomplished until after December 31 of the year in which any elk calf is born. As such, the Board modifies the deadline for submission of records related to births and tattooing to a later date to allow producers to update records in accord with typical herd management practices, calving seasons, and related tattooing.

26.15 Adopted December 16, 2015- Effective January 30, 2016

SPECIFIC STATUTORY AUTHORITY

The specific statutory authority of this Rule is located in §§ 35-41.5-105(2)(a) through (g), 105(3), C.R.S., which cumulatively grant authority to the State Board of Stock Inspection Commissioners to adopt Rules related to operation of alternative livestock facilities, record-keeping, the form and manner of records submissions, standards of practice for a licensee, and setting classification and sub-classification of alternative livestock farms.

Purpose

The purpose of this rule-making is to provide revisions, updates, and clarifications to the “Administration and Enforcement of Alternative Livestock Act §§ 35-41.5-101 – 117 C.R.S” Rules to make them easier to read and understand while updating the Rules to reflect changes in industry practice, terms and definitions of agencies (state and federal), and board concerns. These changes in this rule-making reflect the efforts of the reviewers to clarify the Rules while encouraging the development of the alternative livestock industry within Colorado.

The definitions within this Rule have been updated to harmonize them with those definitions found in the Rules of the Animal Health Division of the Department of Agriculture where disease regulation within alternative livestock is addressed. The reviewers sought to clarify sentences, update language, remove duplicative terms, and increase readability of the Rules overall in accord with the Department’s Regulatory Efficiency Review Process.

Factual Policy and Issues

Since the last modification of these Rules, the Colorado Division of Wildlife has become the Colorado Division of Parks and Wildlife. This name change and the division’s acronym, “CPW,” have been changed within this Rule. The reviewers noted that portions of the Rule were duplicative and unnecessary. For instance parts 2.1 and 2.7 were combined into one.

The regulated industry requested that records for two facilities, located within 25 miles of one another and licensed by the same person, be permitted to be kept at one location; that change is incorporated. Additionally, the regulated industry requested that additional time for notification of alternative livestock death be extended from two days. This Rule change extends that to the end of the month in which the death occurred and provides the opportunity for notification by e-mail.

The standards and practices were updated to require that a carcass release tag accompany hunt-killed alternative livestock when the animals are removed from the facility. Additionally, the reviewers clarified that for elk not on the inventory that are less than 12 months of age at the time of death need not be reported to the Board.

Because alternative livestock receive various forms of identification and because the regulated industry is not utilizing brands for identifying their alternative livestock, the reviewers removed provisions regarding branding of elk.

With regard to inspections, the reviewers clarified how discrepancies between official inventory records and facility records are to be reconciled at the time of annual inspection. The reviewers clarified a facility owner must notify the Board of any alternative livestock that do not ship after a shipment inspection to assist the Board with maintaining accurate records internally. Additionally, the reviewers clarified the inspection-fee language.

With regard to eradication of Chronic Wasting Disease, all references to de-population have been removed from these Rules, as state and federal authorities are rarely exercising this method of control any longer.

Throughout the Rule, the reviewers adjusted language to bring added clarity to the sentences and phrases, to remove redundancies, and to harmonize the words and phrases used throughout the Rule.

26.16 Adopted July 15, 2025 – Effective September 14, 2025

Specific Statutory Authority

The statutory authority for the changes to this rule are found at §§35-41.5-105(2)(g) and (3).

Purpose of these Rules

This rule is proposed by the State Board of Stock Inspection Commissioners (the “Board”) to modify the fee structure to cover more of the actual costs of the program; correct spelling errors; add a late fee for late renewal applications; and revise part 13.

Editor's Notes

History

Parts 2, 3, 26 eff. 11/30/2011.

Entire rule eff. 01/30/2016.

Parts 1, 2, 7-13, 16-17, 26.16 eff. 09/14/2025.